IN THE DISTRICT COURT HELD AT NEW TAFO-AKIM ON FRIDAY 30-05-2025 BEFORE HER WORSHIP JOSEPHINE SARFO (MRS.)

SUIT NO: A1/15/19

KWAKU FRIMPONG SUING FOR HIMSELF
AND ON BEHALF OF ADWOA GYAMFUA,
ADWOA DEDE, YAA AWUSI, ADWOA
KWAYEWAA AND KWASI ADDO **PLAINTIFF**

VRS

1. **THE MUSLIM COMMUNITY OSIEM PER**
   MR. KABORE, ALHAJI IDDRISU ALHASSAN,
   MR. ISMAILA, SHEHU, JUNE, JULY AND HIDI **1ST DEFENDANT**
2. **ISSAKA HAMIDU** **2ND DEFENDANT**

PARTIES -PRESENT
DOLLAH DJABA MENSAH FOR THE PLAINTIFF-PRESENT
DANIEL INNOCENT YAO GBENU FOR EUNICE ODUM BOATENG FOR THE 1ST DEFENDANT-PRESENT

JUDGMENT

The Plaintiff issued a writ of summons out of the registry of this Court on 21/01/21 for the following reliefs:

a. Plaintiff claims against the Defendants jointly and severally declaration of title to a land situate and lying at Osiem and shares boundaries with Akua Dora, Auntie

Ankomaa, Mr. Akoto, Kwame Addo, Islamic School which land defendants have encroached and claiming same.

b. Recovery of possession of the said land.
c. Perpetual injunction restraining Defendants, their agents, assigns, privies, workmen, etc from having anything to do with the land in dispute.
d. The defendants be ordered to pay GHc 7,000.00 being money Plaintiff used to hire a wheel loader(bulldozer) to clear the land in dispute which work defendants and their followers came and stopped and ceased the work to go on for a whole day.
e. General damages.

Plaintiff avers that the grandfather, Nana Kwadwo Badu, in his lifetime acquired a vast land at Osiem. He cultivated this land until his old age when he gifted the land to the mother of the Plaintiff. The mother of the plaintiff also farmed on the land until her old age when she also gave the land to Plaintiff and his siblings. The Plaintiff avers that they have been farming on the land until recently when the Defendants begun encroaching on the land, removing the boundary pillars and claiming that the land belonged to the Muslim Community.

According to the Plaintiff, years ago, the Defendant were in search of land to put up an Islamic school and they approached the then Chief, Nana Opoku who also contacted the mother of the Plaintiff, Adwoa Ohenewaa for a portion of their land. Nana Opoku demarcated a portion of the Plaintiff's vast land to the defendant without the Defendant paying any form of compensation; the said land does not form part of the land in dispute.

The Plaintiff avers that the defendant's encroachment was reported to the arbitration court at the Osiem Stool and the Defendant were invited. During the proceedings, the defendant informed the panel that they had a document covering the disputed land and same has been registered at the Lands Commission, Koforidua. A delegation was sent to verify the claims of the defendant and the feedback gotten was that the disputed land

had not been registered by the Defendant per their claim. The defendants were fined an amount of GHC 1,000.00 which they paid. On 16th February, 2018, the arbitral panel determined the case and ruled in favour of the plaintiff by holding that the defendant had no title to the land in dispute and should only limit their activities to the portion of land given to them by the late Nana Opoku for the Islamic School.

According to the Plaintiff, the defendant has failed to comply with the decision of the panel and have induced their youth to trespass unto the land. The Plaintiff avers that he wanted to develop the land and hired the services of a wheel loader at the cost of GHC 7,000.00 to clear the land however the youth of defendants went to stop the work and further threatened to harm the plaintiff and the operator causing the money paid to the wheel loader operator to go waste.

The defendant in their statement of defence and counterclaim filed in the registry of this court on 08/10/19 averred that the Plaintiff is the son of the late Nana Kwadwo Badu who in his lifetime put up a property on a land adjoined to the land in dispute. The defendant avers that at the time the land in dispute was allocated to them in 1997, same was an abandoned public cemetery under the control, possession and ownership of the Osiem Stool occupied by the late Nana Opoku.

According to the defendant, the plaintiff's mother never laid claim to any portion of the land in dispute in her lifetime neither has any of her successors in title laid claim to the land rather there are living witnesses to the Plaintiff's late mother seeking permission from the defendants to win sand from the land during her lifetime. That the Plaintiff in 2017 during the arbitral proceedings admitted openly that he was told that his late mother had lost the land to the Osiem Stool which had in turn granted same to the defendants. That it was the Plaintiff who trespassed unto the land in dispute and removed the defendant's boundary pillars claiming that the land belonged to the late mother and grandfather.

The defendant avers that a year after acquiring the land in dispute, the Islamic Community put up a four-classroom block on the land to start the Islamic Basic school which is still running and currently three different school blocks have been constructed by the government of Ghana in addition to the four-classroom block earlier constructed on the land. That the mother of the Plaintiff was never approached for the land rather the late Nana Opoku gave the land to the defendants by authorizing them to transform a public cemetery approximately 23 acres into a school. The Defendant further avers that they provided aseda in the nature of a ram, schnapps and an undisclosed sum of money to the late Nana Opoku in public and under the watch and supervision of some principal elders of the Osiem Stool to seal the grant of the land to them.

According to the defendant, the Plaintiff is estopped and statute barred as he never challenged Nana Opoku during his lifetime over the grant of the land to the defendant which grant was made over twenty-one years ago. That they duly obtained a conveyance and a site plan from the late Nana Opoku which documents are still undergoing registration and plotting at Regional Lands Commission, Koforidua. The defendants aver that the arbitral panel rather confirmed the grant by asking the defendant to maintain their land size of 1000 by 1000 square feet granted to them by the Stool.

The Defendant avers that they stopped the bulldozer operator from grading the land simply because the land had already been graded by the defendant and thus the Plaintiff's attempt to re-grade the land was seen as a calculation to create evidence of possession which they resisted. The Defendant therefore counterclaimed as follows:

a. Declaration of title to all that parcel of land making an approximate area of 23 acres and appropriately described at paragraph 8 above.
b. An order of perpetual injunction restraining the Plaintiff, his agents and assigns from trespassing unto the said land.
c. Costs including legal fees.

It is instructive to note that on 19/03/20, the Plaintiff per their notice of discontinuance filed on 02/03/20, discontinued the action against the defendant. The matter thus proceeded on the counterclaim of the Defendants. On 05/02/2021, Issaka Hamidu was joined to the suit by the Court as a defendant on the counterclaim of the Defendant. Issaka Hamidu will be described as the 2nd defendant while the original Defendant will be described as the 1st Defendant for the purposes of this judgment.

In his statement of defence and counterclaim filed on 12//02/2021, he denied trespassing unto the land of the 1st defendant. He states that his land was granted to him by Osabarima Kwaku Poku III, chief of Osiem in 2007 and an indenture executed in respect of same and this was long before the land of the Muslim community was granted to them for their school project. According to the 2nd defendant, he was present when the land measuring 1000 square feet was demarcated and given to the Muslim community and a site plan was made to that effect. He avers that the 1st defendant has gone in for a new site plan which shows 1025,5 on the north, on the west 1054.5, on the east 937.1 and on the south 994.7 and based on that claiming that the 2nd defendant has trespassed unto their land which is totally false. The 2nd defendant therefore counterclaimed against the 1st defendant as follows:

a. Declaration of title to a piece of land situated and being at Osiem which shares boundaries as follows: on the north by the property of Madam Abena Amoakoaa, on the south by the property of Tijani and Ismaila Zakaria, on the east by the lessor's land and on the west by the Islamic property.
b. Recovery of possession of the said land.
c. Perpetual injunction restraining the defendant, their agents, assigns, privies and any other person claiming ownership the land through them.

The 1st defendant in the reply to the defence and defence to the counterclaim of the 2nd defendant filed on 24/02/2021, avers that the land in dispute which was granted to the

defendant in 1997 could not be available for a second grant to the 2nd defendant by the same grantor. That the 2nd defendant was not a member of the Osiem Muslim Communtiy and was not present at the point of the demarcation of the land to the 1st Defendant. That without a permit from the Municipal Planning Authorities, the 2nd defendant proceeded with the unlawful development of the 1st Defendant's land ostensibly to overreach them. The 1st defendant avers that the 2nd defendant's trespass should be reversed and the land recovered for the 1st defendant at the expense of the 2nd defendant.

The following issue was deduced from the pleadings of the parties:

i. Whether or not the 1st defendant is the owner of the land in dispute? (i.e. the 23-acre land as described in paragraph 8 of their statement of defence).
ii. Whether or not the plaintiff has trespassed unto the land of the 1st defendant?
iii. Whether or not the 2nd defendant has trespassed unto the land of the 1st defendant?

ANALYSIS OF THE EVIDENCE AND EVALUATION OF THE LAW

With the 1st defendant's counterclaim and the 2nd defendant also counterclaiming, the respective burdens borne by the parties to prove their claims cannot be overemphasized. The onus that a party bears to prove his claim was stated by the Supreme Court in the case of **IN RE ASHALLEY BOTWE LANDS [2003 – 2004] SCGLR 420** as follows:

"The effect of sections 11(1) and 14 and similar sections in the Evidence Decree 1975 may be described as follows: A litigant who is a defendant in a civil case does not need to prove anything. The plaintiff who took the defendant to court has to prove what he claims he is entitled to from the defendant. At the same time if the court has to make a determination of a fact or of an issue, and that determination depends on the evaluation of facts and evidence the defendant must realize that the determination cannot be made on nothing. If the defendant desires a determination to be made in his

favour, then he has a duty to help his own cause or case by adducing before the court such facts or evidence that will induce the determination to be made in his favour…"

In respect of the defendants' counter claim it is to be viewed with the same scale of measurement as if they were the plaintiff. As far back as the case of **AMON** v **BOBBETT (1889) 22 QBD 543** where Browne LJ noted that:

"a counter claim is to be viewed and to be treated for all purposes for which justice requires it to be so treated as an independent action".

Dotse JSC came to the same conclusion on counter claim actions in the case of **JASS CO. LTD v APPAU [2009] SCGLR 269 at 271** that:

'whenever, a defendant also files a counterclaim, then the same standard or burden of proof would be used in evaluating and assessing the case of the defendant just as it was used to evaluate and assess the case of the plaintiff against the defendant'

In this case, no burden is on the plaintiff to prove the case. The burden of proof lies on the 1st Defendant who assumed the position of the Plaintiff on their counterclaim and the 2nd defendant to the 1st Defendant's counterclaim who also counterclaimed.

The 1st defendant in an attempt to prove the case called two witnesses. 1DW-1, Alhaji Iddrisu Alhassan testified among others that the land in dispute was granted to them by the late Nana Kwaku Opoku III then occupant of the Osiem Stool and Aseda paid in the form of a ram, schnapps and an undisclosed sum of money. He stated that during the arbitral proceedings held between the Plaintiff and the 1st Defendant, the plaintiff admitted that the mother had lost her farm land to the Osiem Stool and thus plaintiff could not turn around to lay claim to it after his mother's death. 1DW-2, Ismaila Gariba, corroborated the testimony of the 1DW-1 and stated that upon the grant of the land in dispute by the Osiem Stool, a document was executed by the parties which document was later submitted to the Lands commission for registration. He tendered into evidence

a letter from the Lands Commission which was marked as Exhibit 1. According to 1DW-2, the 1st defendant is claiming title to all that parcel of land making an approximate area of 23 acres or 9.3 hectares situate at Osiem- Akim which is appropriately described per an indenture of sale which he tendered into evidence and was marked as Exhibit 2.

The Plaintiff testified for himself and called four witnesses. He stated among others that his land which forms part of the area being claimed by the 1st defendant was originally acquired by the grandfather, Nana Kwadwo Badu who in his lifetime farmed on the land and made a customary gift of the land to the mother of the Plaintiff, Adwoa Ohenewaa in the 1980s. The Plaintiff's mother, Adwoa Ohenewaa farmed on the land to the knowledge of all until she died in the year 2014. That before her death, the mother and other adjoining landowners demarcated a portion of their lands to the defendants for the purpose of building a school sometime in the year 1997. This grant, the plaintiff states was negotiated by the then Chief of Osiem, Nana Opoku on behalf of the 1st defendant. Subsequent to the grant, there was a distinct boundary between the plaintiff and the 1st defendant's land which has remained the boundary feature till date. The plaintiff's land is bounded to the west by the SDA cemetery and Islamic School, to the north/west by the property of Akua Dora, the north by the property of Mr. Akoto, the north east by the property of Mr. Noah and the south by the Osiem to Koforidua motor road. That upon the death of Nana Opoku in 2015, the 1st defendant begun laying adverse claims to the Plaintiff's land so the Plaintiff summoned the leadership of the Muslim community before the Osiem Stool. A copy of the arbitral award was tendered into evidence by the Plaintiff and marked as Exhibit A.

The Plaintiff stated that his land was not part of the land originally granted to the 1st defendant as the disputed area was being actively used as a public cemetery and the claim of the 1st defendant that the disputed area was an abandoned cemetery is unfounded.

PW-1, Kwabena Noah testified that when facing the land from Osiem to Koforidua motor road, his land shares boundaries at the northeastern and eastern part with the land of the Plaintiff. That the Plaintiff is the neighbour who has been farming on the disputed land for years now as he has also been farming his land from his youth till date.

PW-2, Okyeame Kwasi Obeng testified that he was part of the panel that arbitrated upon the land dispute between the Plaintiff and the 1st Defendant in 2017 and was part of the delegation appointed to verify the claims of the 1st Defendant from the Lands Commissions that they had registered the land in dispute which claim turned out to be false. He stated that to verify their findings that the area in dispute was free from any encumbrance they prepared a site plan on 0.92 acres of the area in dispute in the name of one Joseph Abrokwah, a nephew of the Plaintiff and a search conducted revealed that the area was not affected by any recorded transaction. A copy of the search was tendered into evidence as Exhibit B. He corroborated the Plaintiff's testimony that the panel determined the matter in favour of the Plaintiff and tendered a copy of the arbitral award as Exhibit C.

PW-3, Akua Dora, testified that she is the northwestern boundary neighbour of the plaintiff when facing the Osiem-Koforidua motor road and has been farming on her land for twenty (20) years before the 1st defendant trespassed on their land and she knows the Plaintiff as the neighbour who have been farming on their land until the 1st defendant begun making adverse claims to some portions of the land after the death of the former chief.

Aboagye Brako, the lawful attorney of Kofi Opoku (PW-4), testified that as head of the plaintiff's family, he was present when their grandfather Nana Kwadwo Badu made a customary gift of the land to his sister, Adwoa Ohenewaa. That he was also present when the 1st defendant through the then chief of Osiem approached his sister to ask for a parcel

of land to use for a school. That the Plaintiff's land did not form part of the portion demarcated to the 1st defendant.

The 2nd defendant testified for himself and called one witness. He stated that he acquired his parcel of land from the Osiem Stool in the year 2007 and his land was allocated to him before that of the 1st Defendant. He stated that he was present during the allocation of the 1st defendant's land as he also belongs to the Muslim Community. That the 1st defendant is by their new cadastral map seeking to claim his land as theirs. A copy of the indenture executed between the Stool and the 2nd defendant was not admitted into evidence as it was not stamped in accordance with the Stamp Duty Act, 2005 (Act 689) and same marked as Exhibit R1.

John Sedo, 2DW-1, testified that in the year 1990, he was appointed the Chairman of the Plot allocation committee of Osiem and in the year 2007, he led a team to demarcate a plot of land to the 2nd defendant. He stated that the 2nd defendant's land was allocated to him long before that of the 1st defendant.

In the course of the trial, a surveyor was appointed to draw a composite plan to assist the Court in the resolution of the issues.

The surveyor tendered her report and she was also cross- examined by the Plaintiff's lawyer. According to the surveyor, from the composite plan prepared, the plan depicts the following:

i. The parcel edged Green is owned by MR Kweku Frempong (Plaintiff), which covers a land area of 3.12 acres and shares a common boundary with the Islamic school which is edged Yellow in the composite plan.
ii. The parcel edged Red is owned by the Muslim Community (1st Defendant) which covers a land area f 23.19 acres and shares a common boundary with the 100ft Osiem highway.

iii. The parcel edged Yellow is the land area occupied by the Islamic school, which shares a common boundary with that of Mr. Kweku Frempong's land edged Green.

iv. The parcel edged Brown is owned by Mr. Issaka Hamidu (2nd Defendant) which covers a land area of 0.71 acres and shares a common boundary with the Islamic Community's land edged Red.

In conclusion, the parcels of both Mr. Kweku Frempong and that of Mr. Issaka Hamidu's parcels edged Green and Brown respectively can both be found within the larger land area which is edged Red.

In an action for declaration of title to land, recovery of possession and injunction, a Plaintiff must establish by positive evidence the identity and limits of the land he claims. See the case of **AGYEI OSAE AND ORS V ADJEIFIO AND ORS (2007-2008) SCGLR 499.** Similarly, the Supreme Court held in the case of **NORTEY (NO.2) V WEST AFRICAN INSTITUTE OF JOURNALISM [2013/14] SCGLR 703 in holding 2** as ***"since the Plaintiff had sought at the trial High Court, a declaration of title to the disputed land, he must establish the identity and limits of the land…"***

In the case of **KWABENA v ATUAHENE [1981] GLR 136, CA**; the court stated as follows that:

"the onus of proof required by law as regards the identity of land would be discharged by meeting these conditions:

a. ***The plaintiff had to establish positively the identity of the land to which he claimed title with the land, the subject matter of the suit.***

b. ***The plaintiff also had to establish all his boundaries.***

c. ***Where there was no properly oriented plan drawn to scale which made compass bearing vague and uncertain, the court would hold that the plaintiff had not discharged the onus of proof of his title"***

The 1st defendant in an attempt to prove its title to the disputed land relied on Exhibit 2 which is an indenture of sale executed between the Osiem Stool and Moderasatu Olumushrieatu Islamic School on 16th March 1997 with a Land Valuation receipt dated 23rd April 2018. 1st Defendant also relied on Exhibit 1 which is a letter addressed to them by the Lands Commission, Koforidua, informing the 1st Defendants of conflict or encroachment issues on the land upon the 1st defendant's quest to register their interest in the 23 acres land they are laying claim to. Apart from these documents relied on by the 1st Defendant to prove their title to the 23acre land, they did not adduce any further evidence to buttress their claim to the disputed land. In **Elizabeth Osei Vrs. Madam Alice Efua, Korang {2013} 58 GMJ SC @ 30 per Ansah JSC, the Supreme Court held that:**

"It is settled that receipts, building permit, building plans, title documents, etc, do not confer titles on their holders per Se, but are nevertheless strong acts of ownership" see also <u>Kwofie Vrs. Kakraba {1966} GLR 229</u>.

Exhibit 2 indeed did not confer title to the 23-acre land on the 1st defendant but only acted as strong evidence of ownership more especially as there are other competing interests from the Plaintiff and the 2nd Defendant in respect of portions of the 23 acres of land the 1st Defendant is laying claim to.

It was incumbent on the 1st defendant beyond the documentary evidence to adduce cogent evidence of title to the 23 acres land. The 1st Defendant apart from Exhibit 2 did not call any boundary owners to testify to their ownership of the land in dispute. This was particularly important as per the contents of exhibit 1 which is the letter from the Lands Commission to the 1st defendant their interest in the disputed land could not be

registered due to conflict/encroachment issues on the land. More so, the 1st Defendant's school, the Islamic Primary School is delimited to only a portion of 23 acre land they purported to register. It is also important to note that the 1st Defendant only sought to register their interest in this land after a customary arbitration between them and the plaintiff wherein the plaintiff was adjudged the owner of the land he is currently in possession of. The decision of the arbitral panel was delivered on 16/02/2018 while the 1st defendant submitted their indenture for registration on 23/04/ 2018 as per the Land valuation receipt stamp. This clearly shows that it was only after the outcome of the customary arbitration that the 1st Defendant sought to register their interest in the land. I deem this step taken by the 1st defendant as an attempt to disregard the outcome of the customary arbitration which was not in their favour.

Flowing from the above analysis and the fact that the 1st Defendant's own indenture which it sought to register was rejected for encroachment issues, I am not persuaded to adopt and rely on the findings of the court expert who was appointed by the court to prepare a composite plan. In **Fenuku v John Teye [2001-2002] SCGLR 985 it was held in holding 6** that:

"The principle of law regarding expert evidence was that the judge need not accept any of the evidence offered. The judge was only to be assisted by such expert evidence to arrive at a conclusion of his own after examining the whole of the evidence before him. The expert evidence was only a guide to arrive at the conclusion".

I will accordingly not accord any weight to the findings of the court expert as contained in the composite plan for the very reason that the site plan used in the preparation of the composite plan is different from that which was tendered into evidence by the 1st Defendant.

As important as the identity of the land in dispute was concerned, the 1st Defendant failed to establish its own boundaries aside its reliance on Exhibit B which was refused registration by the Lands Commission for encroachment issues.

In contrast to the failure of the 1st Defendant in calling its boundary owners, the Plaintiff called two of its boundary owners. PW-1 testified that he is the northeastern and eastern boundary owner while PW-3 also testified that she is the northwestern boundary owner of the Plaintiff when facing the Osiem-Koforidua motor road. They both alluded to the presence of the Plaintiff's predecessors on the land since time immemorial and confirmed that the Plaintiff was in possession of the land, he was asserting rights over which did not form part of the land granted to the Islamic community, the 1st Defendant.

Further solidifying its title to the land was the fact that the Plaintiff was relying on Exhibit A which is the customary arbitration award delivered by the Osiem Stool during a customary arbitration between the Plaintiff and the 1st Defendant over the land in dispute. Among others, the panel came to the determination that the Muslim community had truly encroached the lands of the Plaintiff and others unlawfully and gave the Muslim community a strong warning not to have anything to do with the said land they had encroached on. There is no evidence before this court that the said customary award has been set aside by any court of competent jurisdiction at the instance of the 1st Defendant herein who was party to the said proceedings before the Osiem Stool as required by section 112 of the Alternative Dispute Resolution Act, 2010 (Act 798). The Award is therefore regular and as counsel for the Plaintiff rightly stated in his written address to this court, the award is valid and binding on the 1st Defendant as stipulated by section 109 of Act 798.

Given the fact that the 1st Defendant traced their title to the land in dispute to the Osiem Stool via the then chief Nana Opoku and the Stool, per its decision as per Exhibit A, came to the determination that the Muslim community had encroached portions of the

Plaintiff's land and other individuals, it was disingenuous on the part of the Defendant to seek to register their purported interest in the 23-acre land just two months after the award was delivered. Their attempt to register the land was to overreach the Stool and other land owners including the Plaintiff. This court will not regularize this illegality, the defendant having failed to take steps to set aside the customary arbitration award which they fully took part in per the evidence before the court.

In view of the foregoing, I find that the 1st Defendant's title to the 23 acres land which is fully described in the schedule to Exhibit 2 is unfounded and not supported by the evidence on record. I hold that the land granted to the 1st Defendant by the Osiem Stool was only limited to the portion where the Islamic Basic School is situated and does not include that of the Plaintiff's land as clearly decided by the Osiem Stool. In connection to this, the 2nd Defendant who joined as a defendant on the counterclaim of the 1st Defendant was rightly granted the land by the Osiem Stool for it is the Stool that could determine the size or acreage it gave to the 1st Defendant through the usufruct land owners and thus having divested itself of the interest could not have granted a second interest in the land to the 2nd Defendant. More so, the court having come to determination that the 1st Defendant could not rely on Exhibit 2 to lay claim to the land of the Plaintiff, same goes for the 2nd Defendant as the 1st defendant cannot rely on Exhibit 2 to deprive the 2nd Defendant of his interest in the land he validly acquired from his grantor, i.e. the Osiem Stool.

DECISION

I conclude that the 1st Defendant has failed to prove their case on a preponderance of probabilities and I find 1st defendant's claim to the land in dispute unconvincing and outweighed on the balance as against the case of the Plaintiff and 2nd Defendant. I accordingly dismiss the reliefs being claimed by the 1st defendant on their counterclaim.

I enter judgment in favour of the 2nd Defendant against the 1st Defendant for the reliefs as endorsed on the counterclaim of the 2nd Defendant.

I further declare that the 1st Defendant's land is only limited to the land where the Islamic Basic school is situated and does not include that of the Plaintiff and the 2nd Defendant's land.

I award cost of GHC 20,000.00 against the 1st Defendant in favour of the Plaintiff and in respect of the 2nd Defendant, I award cost of GHC 10,000.00 in his favour against the 1st Defendant.

SGD

H/W JOSEPHINE SARFO (MRS)